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6A ANIMAL BOARDING OR TRAINING ESTABLISHMENTS HORSE BREEDING OR TRAINING ESTABLISHMENTS

6A.1 GENERAL

1. "Animal boarding or training establishment" means a building or place used for the breeding, boarding, training, keeping or caring of animals for commercial purposes (other than for the agistment of horses) and includes any associated riding school or ancillary veterinary hospital."

2. This part of the DCP applies to all Animal Boarding or Training Establishments used for the purposes of keeping, breeding or training horses.

6A.2 MINIMUM SITE AREA

Objective

(a) To permit horse breeding or training establishments upon certain sized rural and non-urban landholdings, to minimise potential land use conflicts with rural residential and other rural land uses in a particular locality.

Development Controls

1. The minimum site area for any horse breeding or training establishment shall be 2 hectares.

2. Notwithstanding this, the minimum site area for any horse breeding or training facility within the landholdings known as Lots 192 and 144, DP 750401, and lot 1 DP310621 bounded by James road and Pinnacle Road may be a minimum of 1 hectare provided the facility is operated by the occupants of each rural residential dwelling only, for their own private recreation purposes.

6A.3 MAXIMUM NUMBER OF HORSES – TOWAC EQUESTRIAN ESTATE

Objective

(a) To restrict the number of horses within any horse boarding, breeding or training establishment within the Towac Equestrian Estate, in order to maintain the amenity of the locality and in the interests of animal welfare.

Development Controls

1. The maximum number of horses for any animal boarding, breeding or training establishment within the Towac Equestrian Estate shall be restricted to a rate of not more than 1 horse per 4,000m^2 of the site area. Veterinary hospitals may exceed this rate where the horses are kept on premises temporarily for treatment or examination.

6A.4 MINIMUM SETBACK REQUIREMENTS FOR HORSE STABLES AND SHELTERS

Objective

(a) To ensure horse stables and shelters are appropriately setback from common property boundaries, in order to maintain the amenity and character of the surrounding locality.

Development Controls

1. Any horse stable or horse shelter shall be setback from property boundaries and adjoining land uses in accordance with Table 4 below

Minimum Setback Requirements for Horse Stables and Shelters

Land Use	Minimum Setback Requirement
Front Building Line Setback to Primary Road	Behind the building line of the associated dwelling
Secondary Road Frontage	10 metres
Side and Rear Building Line Setback	20 metres
Adjoining Dwelling not associated with the facility	20 metres

2. Within the setback areas stated in the table above a 5m wide landscaped area is to be included along the relevant boundary, comprising trees that mature to between 4 – 8 metres in height and spaced so that at maturity the drip lines of foliage connect to form a continuous vegetative screen.

3. Trees planted as part of the vegetative screen required by control 2 are to be protected from grazing during establishment with tree guards or similar devices until the trees achieve a minimum height of 1.5m.

6A.5 HORSE STABLE, EXERCISE YARD AND SHELTER REQUIREMENTS

According to the RSPCA an average 500kg (approx. 15hh) horse drinks around 30 – 50 litres a day. This amount can increase based on hot weather, dry feed or being heavily worked/exercised. Additionally, a mare with foal can need between 1.8 to 2.5 times as much water as normal. For this reason it is highly recommended that the yard and shelter be designed to provide ample shade and placement of watering troughs in shaded areas to limit evaporation is also preferred. Consider including rainwater tanks to collect runoff from stables and shade structures as a way to help reduce overall water consumption.

Objectives

(a) To ensure horse stables and shelters are well designed and constructed to provide suitable all weather protection for horses.

(b) To ensure horse stables and shelters are sympathetic to the rural landscape and the scenic environmental amenity of the locality.

(c) To ensure horse breeding and training establishments provide suitable exercise training yards.

Development Controls

1. Each horse should be provided with a suitable horse stable and exercise training yard.

2. The minimum size for any horse stable should be 3.7 metres wide and 3.7 metres deep. The height of any horse stable should be a minimum of 2.75 metres up to 3.4 metres, depending upon the height of the horse.

3. The roof of the stable shall provide all weather protection and should incorporate appropriate guttering and down pipes to convey stormwater into rainwater tanks and into appropriately designed stormwater drainage systems or drinking troughs.

4. The walls of the horse stable should be of a masonry construction for a height of at least 1.2 metres with either masonry or solid galvanised iron sheeting provided for the upper wall panelling. Any concrete masonry blocks should be reinforced with vertical steel rods and the cores filled with concrete. Some form of window or air passage between the roof and the walls is needed for cross-ventilation purposes.

5. The wall height shall range between 2.75 metres up to 3.4 metres high, depending upon the height of the intended horse. The external walls of the stable shall be appropriately sealed and waterproofed. The internal walls of the stable should be lined with plywood sheeting or rubber material to prevent injury to horses and to also protect the walls from pawing or kicking.

6. The doors of any horse stable shall be at least 1.2 metres wide and 2.4 metres high with no protrusions which may cause potential injury to the horse. Any latches to the doors should be strong and have no protrusions which may injure the horse.

7. The floor of any horse stable must be constructed of an impervious material which is graded towards the doorway to permit drainage and with no low spots where urine can collect.

8. A 100mm thick reinforced concrete slab is the preferred flooring method. Clean bedding such as straw or sawdust should be provided daily to prevent any foot or leg problems caused by the horse standing on concrete.

9. Feeders and water troughs should be raised to a height of 1.05 metres aboveground and placed within a corner of the stable. The feeders and water troughs should be smooth finished and free of any protrusions.

10. Any horse shelters shall be constructed to fulfil the same requirements as a horse stable regarding walls, floor and roofing but should be provided without any doors, in order to allow free passage of horses to / from the shelter, at all times.

11. The external finishes of any horse stable or horse stable shall be painted in a muted green, light brown or grey colour, in order to maintain the rural character of the surrounding locality.

6A.6 HORSE PADDOCKS

Objectives

(a) To ensure horse paddocks are of a sufficient size and are provided with appropriate feed and shade trees.

(b) To ensure horse paddocks are properly fenced (both internally and externally) to minimise any injury to horses and to encourage rotational grazing of the paddocks.

Development Controls

1. The minimum paddock size for each horse should be 3,000m^2 with a preferable size of 1 hectare or more.

2. Any horse paddock must contain a horse shelter as well as shade trees.

3. Horse paddocks should be internally fenced, wherever possible to allow for the rotational use of the grazing area, in order to minimise any potential overgrazing.

4. Supplementary feed must be provided, where necessary.

5. Post and rail fencing for horse paddocks is preferred. The use of wire or barb wire is not recommended because of its tendency to cause injury to horses. Electric fences are suitable but should be supported with some type of sight barrier (eg a painted tin lid) attached to the electric wire, in order to improve the visibility of the electric fence.

6A.7 LIQUID AND SOLID WASTE COLLECTION AND TREATMENT

Objective

(a) To ensure all horse boarding, breeding or training establishments have appropriate liquid and solid waste collection and treatment systems.

Development Controls

1. All liquid wastes are to be led to a settling pond area, prior to discharge into any watercourse, stormwater drainage system or Sydney Water Corporation sewerage system. The settling pond area shall have a minimum capacity of 1.5% of the total site area with a maximum depth of 1.2 metres. Any pond overflow shall meet the water quality criteria set out in the ANZECC guidelines for the particular receiving waterway.

2. All solid manure should be removed regularly and placed in a suitable waste storage bin. The solid waste storage bin should be a large metal bin with a flanged-fitting metal lid which is waterproof and prevents access to flies and / or vermin. This bin should be emptied and disinfected weekly.

3. The full details of the proposed liquid and solid waste treatment process including the settling pond area are to be submitted with the Development Application for an animal boarding or training establishment.

4. In the event that the proposal is ultimately supported, a condition of consent may be imposed requiring an appropriate water sampling program to be implemented to monitor the water quality of any waters discharging from the settling pond.

5. The sampling regime is likely to involve quarterly sampling and sampling after each heavy rainfall event.

   The sampling of the water at a registered NATA laboratory should include the following parameters:-

   (a) pH;

   (b) Suspended solids;

   (c) Dissolved Oxygen;

   (d) Total Phosphorous;

   (e) Ammonia;

   (f) Total Nitrogen; and

(g) Faecal Coliforms.

6. The preparation of an annual environmental management plan may also be required for any approved horse boarding, breeding or training facility which outlines the performance of the settling pond bearing in mind the sampling regime.

6A.8 EQUINE PRECINCT SUBDIVISION

Objective

(a) To provide and preserve opportunities for the keeping of horses and related activities in a residential context within specific locations.

Development Controls

1. This section of the DCP applies to land within the Towac Equine Precinct, as defined in the Equine Precinct Map.

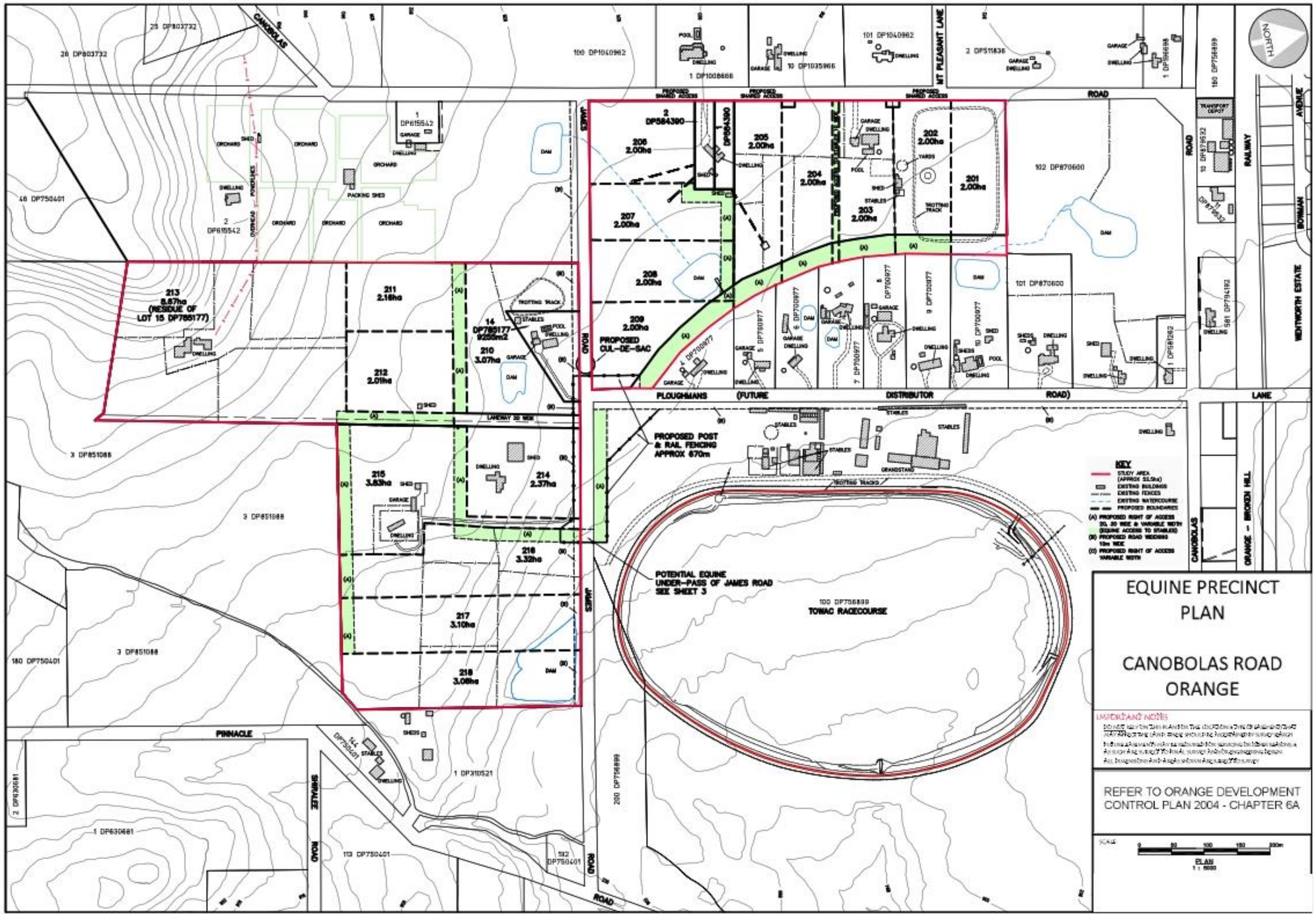
2. Subdivision of land within an Equine Precinct is to identify and include on all newly created lots a restriction as to user under Section 88B of the Conveyancing Act 1919 that:

   a. Nominates an area of land within the lot suitable for the erection of a stable and exercise yard, sufficient for the keeping of at least 1 horse.

   b. The area of land nominated must be consistent with the setbacks and other controls in this part of the DCP.

   c. The area of land nominated is to be restricted so as to prevent the erection or maintenance of any buildings other than a horse stable and associated tack room.

3. Subdivision of land within an Equine Precinct shall be required to undertake post-and-rail fencing of the area nominated in the restriction as to user required above.



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